

The First Statutes of the Rajiv Gandhi National Institute of Youth Development, 2013

Source: <https://indiankanoon.org/doc/17965880/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

The First Statutes of the Rajiv Gandhi National Institute of Youth Development, 2013

UNION OF INDIA

India

The First Statutes of the Rajiv Gandhi National Institute of Youth Development, 2013

Rule THE-FIRST-STATUTES-OF-THE-RAJIV-GANDHI-NATIONAL-INSTITUTE-OF-YOUTH-DEVELOPMENT-2013 of 2013

Published on 18 June 2013

Commenced on 18 June 2013

[This is the version of this document from 18 June 2013.]

[Note: The original publication document is not available and this content could not be verified.]

The First Statutes of the Rajiv Gandhi National Institute of Youth Development, 2013

Published vide Notification No. G.S.R. 461(E), 18th June, 2013

Ministry of Youth Affairs and Sports

(Department of Youth Affairs)

G.S.R. 461(E). - In exercise of the powers conferred by section 31 read with Sub-section (i) of section 32 of the Rajiv Gandhi National Institute of Youth Development Act, 2012 (35 of 2012

), the Central Government, with the prior approval of the ViSitor, hereby frames the following First Statutes for the Rajiv

Gandhi National Institute of Youth Development, namely:-

1.

Short title and commencement.

(1)

These Statutes may be called the First Statutes of the Rajiv Gandhi National Institute of Youth Development, 2013.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these first Statutes, unless the context otherwise requires, -

(a)

"Act" means the Rajiv Gandhi National Institute of Youth Development Act, 2012;

(b)

"Appointing authority" means the authority referred to in first Statute 17;

(c)

"authorities" and "officers" in relation to the Institute mean, respectively, the authorities, and officers of the Institute;

(ca)

["Board of Research Studies" means the authority as referred to in clause (c) of section 11 of the Act;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(cb)

"Board of Studies" means the authority as referred to in sub-section (c) section 11 of the Act;]

(d)

"Building and Works Committee" means the Building and Works Committee of the Institute constituted under first Statute 11;

(e)

"Centre" in relation to the Institute means a unit of the Institute engaged in the activities, as specified under these Statutes;

(ea)

["Controller of Examinations" means the Controller of Examinations of the Institute as referred to in clause (c) of section 21 of the Act;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(eb)

"Dean" means the Dean of a School of the Institute;

(ec)

"Division" means a unit of the Institute engaged in activities as specified in the Statutes;]

(f)

"Disciplinary authority" means the authority referred to in first Statute 18;

(g)

"Department" in relation to the Institute means a unit of the Institute engaged in activities, as specified under these Statutes;

(ga)

["employee" means a person duly employed by the Institute and receiving emoluments;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(gb)

"Faculty" means the teaching and research faculty of the Institute;

(gc)

"Finance Committee" means the Finance Committee of the Institute as referred to in clause (c) of section 11 of the Act;

(gd)

"Finance Officer" means the Finance Officer of the Institute as referred to in clause (c) of section 21 of the Act;]

(h)

"Institute" means the Rajiv Gandhi National Institute of Youth Development;

(ha)

["officer" means an officer of the Institute as referred to in sub-section (c) of section 21 of the Act;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(hb)

"Planning Board" means an authority as referred to in clause (c) of section 11 of the Act;]

(i)

"programme" means [all academic and training programmes]

[Substituted 'any programme' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Institute;

(ia)

["rules" mean the rules of the Institute made by the Central Government under the Act;]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(j)

"Schedule" means the Schedule annexed to these Statutes;

(ja)

["School" means a School of studies of the Institute;]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(k)

"Central Government" means the Ministry of Youth Affairs and Sports, Department of Youth Affairs.

(2)

Words and expressions used herein and not defined but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Authorities.

- The following shall be the authorities of the institute, namely:-

(a)

the Executive Council as established under section 12 of the Act;

(b)

the Academic Council as constituted under section 16 of the Act;

(c)

the Finance Committee as constituted under section 18 of the Act;

(d)

the Building and Works Committee as constituted under the first Statute 12.

(e)

[the Planning Board;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(f)

the Board of Studies; and

(g)

the Board of Research Studies.]

4.

Executive Council and meetings thereof.

(1)

The bodies entitled to nominate or elect representative of the Executive Council referred to in clause (a) of first Statute 3 shall be invited by the Registrar to do so within a period not exceeding six weeks from the date on which such invitations are issued by him.

(2)

Casual vacancies of the Executive Council shall be filled up by following the procedure, specified under sub-Statute (1).

(3)

The Executive Council shall ordinarily meet four times during a calendar year.

(4)

[Meetings of the Executive Council shall be convened by the Director of the institute in consultation with the Chairperson or on a requisition signed by not less than fifty percent of the members of the Executive Council.

(5)

At-least one third of the members shall be the quorum for a meeting of the Executive Council:

Provided that if a meeting is adjourned for want of quorum, it shall be held after half an hour from the scheduled time of holding the meeting and members present then, shall form the quorum]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(6)

All questions considered at the meetings of the Executive Council shall be decided by a majority of the votes of the members present including the Chairperson and if the votes be equally divided, [the one who Chairs]

[Substituted 'the Chairperson' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

shall have a casting vote.

(7)

The Chairperson shall preside over every meeting of the Executive Council.

(8)

A written notice of every meeting shall be sent by the Registrar to every member at least fifteen days before the date of the meeting, specifying therein the place, date and time of such meeting:

Provided that the Chairperson may call a special meeting of the Executive Council at short notice to consider urgent issues.

(9)

The notice may be delivered either by hand or sent by registered post or e-mail or fax, at the address of each member as recorded in the office of the Executive Council, and if so sent, shall be deemed to be duly delivered at the time at which notice would be delivered in the ordinary course of post.

(10)

Agenda shall be circulated by the Registrar to all members at least fifteen days before the meeting.

(11)

Notices of motions for inclusion of any item on the agenda must reach the Registrar at least one week before the meeting:

Provided that the Chairperson may, permit inclusion of any item for which due notice has not been received.

(12)

The ruling of the Chairperson with regard to all questions of procedure shall be final.

(13)

[The minutes of the proceedings of a meeting of the Executive Council shall be drawn up by the Registrar in consultation with the Director and after approval by the person who chaired the meeting of the Executive Council shall be circulated to all the members and be placed in the next meeting and in that next meeting or through circulation, the minutes shall be confirmed by the majority of members]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(14)

The minute book shall be kept open for inspection of the members of the Executive Council at all times during office hours.

(15)

No matter concerned with finance shall be placed before the Executive Council unless the same has been considered by the Finance Committee.

(16)

No matter which should be first considered by the Building and Works Committee shall be placed before the Executive Council unless the same has been [considered by the Finance committee.]

[Substituted 'considered by the Building and Works Committee after obtaining the administrative approval of the Executive Council' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(17)

[No matter which should be first considered by the Academic Council or Building and Works Committee or Finance

Committee, shall be placed directly before the Executive Council.

(18)

If a member of the Executive Council fails to attend three consecutive meetings without leave of absence from the council, he shall leave to be a member of the council.]

[Substituted 'If a member of the Executive Council fails to attend three consecutive meetings without leave of absence from the Council, he shall cease to be a member of the Council.' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

5.

[Powers and functions of the Executive Council representatives]

[Substituted 'Powers of the Executive Council.' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

- In addition to the powers provided under sub-section (1) of section 15 of the Act, the Executive Council shall be empowered -

(a)

to make, alter, modify or rescind the Statutes as provided under the Act;

(b)

to make, alter, modify or rescind all or any of the Ordinances as provided under the Act and Statutes on the recommendation of the Finance Committee or the Academic Council, subject to the condition that such making, modification and rescinding shall not be in contravention of the Act and the Statutes;

(c)

to establish new divisions, centres and departments as deemed necessary for the effective functioning of the institute and re-name existing divisions, centres and departments for its effective performance, with the prior approval of the Central Government.

6.

Authentication of orders of Executive Council.

- All orders and decisions of the Executive Council shall be authenticated by the signature of the Director or Registrar or any person authorised by the Executive Council in this behalf.

7.

Academic Council.

(1)

The Academic Council shall be the principal academic and programme advisory body of the Institute.

(2)

The term of office and filling up of vacancies of every member of the Academic Council shall be as provided for the members of the Executive Council under the Act.

(3)

The bodies entitled to nominate or elect [representative to]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

the Academic Council shall be invited by the Registrar to do so within a period not exceeding six weeks from the date on which such invitations are issued by him.

(4)

The Academic Council shall meet as often as necessary, but ordinarily not less than [three times during an academic year of the Institute.]

[Substituted 'two times during a calendar year' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(5)

Meetings of the Academic Council shall be convened by the Chairman of the Academic Council either on his own motion or on a requisition signed by not less than one fifth of the members of the Academic Council.

(6)

Requisition meeting shall be a special meeting to discuss only those items of agenda for which requisition is given and the requisition meeting shall be convened by the Chairman of the Academic Council on a convenient date and time.

(7)

One [third]

[Substituted 'half' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the total number of members of the Academic Council including the representative of the Central Government shall form a quorum for a meeting of the Academic Council.

(8)

The Director shall preside over every meeting of the Academic Council [and in his absence, the senior most Dean present shall preside over the meeting.]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(9)

A written notice of every meeting together with the agenda shall be circulated by the Registrar to the members of the Academic Council at least fifteen days before the meeting:

Provided that the Chairman of the Academic Council may permit inclusion of any item for which due notice has not been given.

(10)

Notwithstanding the provisions of sub-Statute (5) above the Director may call for an emergency meeting of the Academic Council at short notice to consider urgent or special issues.

(11)

The ruling of the Chairman of the Academic Council with regard to all questions of procedure shall be final.

(12)

The minutes of the proceedings of a meeting of the Academic Council shall be drawn up by the Registrar [in consultation with the Director]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

and circulated to all the members of Academic Council.

(13)

The minutes, along with amendments, if any, suggested shall be placed for confirmation at the next meeting of the Academic Council and after the minutes are confirmed and signed by the Chairman of the Academic Council, they shall be recorded in a minute book, which shall be kept open for inspection of the members of the Academic Council and the Executive Council at all times during office hours.

(14)

[The notice may be delivered either by hand or through electronic means or by ordinary post.

(15)

The Agenda shall be circulated by the Registrar to all members at least one week before the meeting.

(16)

During the discussions on admission, examination, evaluation and service conditions of faculty and staff, student representatives to the Academic Council shall not be permitted to participate.]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

8.

Powers of the Academic Council.

- Subject to the provisions of the Act, the Academic Council shall have the [powers and functions to]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

:-

(i)

frame, approve and revise the curricula and syllabi for the [programmes of studies, as recommended by the Board of Studies]

[Substituted 'courses of studies' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(ii)

approve content of programmes and activities recommended by the [appropriate authorities of the Institute]

[Substituted 'Advisory Councils' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(iii)

make appropriate provisions for the conduct of examinations, appointment of examiners, moderators, tabulators and other matters relating to the examinations;

(iv)

[approve]

[Substituted 'declare' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

the results of the examinations or to appoint committees or officers to do so and to make recommendations to the Executive Council regarding conferment or grant of degrees, diplomas and other academic distinctions or titles;

(v)

appoint committees from amongst the members of the Academic Council, other teachers of the Institute and experts from outside to advise on such specific and important academic matters, as may be referred to any such committee appointed by the Academic Council;

(vi)

[consider the recommendations of the appropriate authorities of the Institute attached to various divisions, schools, centres and departments and that of expert and other committees and to make recommendations to the Executive Council for appropriate action;

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(vii)

make provisions for periodic review of the activities of the Faculties, Divisions, Schools, Centres and Departments and to make recommendations to the Executive Council for appropriate action;]

(viii)

[make periodic]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

review of the functioning of the Library of the Institute;

(ix)

[Make provision for periodic]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

review of research and academic development or activity-within the Institute and seek reports on such research or academic development or activity from the persons engaged therein;

(x)

[provide for a comprehensive academic audit system, to review the functioning and performance of divisions, schools, centres, departments, library and other academic infrastructure once in three years along with setting up of an internal quality assurance cell, and to recommend to the Executive Council;]

[Substituted 'provide for the inspection of the class rooms, computer and language laboratories, library and the residential hostels' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(xi)

plan co-curricular activities of the students of the Institute;

(xii)

award stipends, scholarships, medals and prizes, and other awards, as recommended by the appropriate authorities of the Institute in accordance with such conditions as may be attached to the awards;

(xiii)

[recommend to the Executive Council for creation, restructuring or closure of divisions, schools, centres, and departments of the Institute, with appropriate infrastructure;]

[Substituted 'make recommendations to the Executive Council with regard to the creation or restructuring of divisions, centres and departments of the Institute' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(xiv)

make recommendation to the Executive Council with regard to abolition of existing divisions, centres and departments thereof;

(xv)

[recommend]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

to the Executive Council to disseminate knowledge through [virtual]

[Substituted 'distance' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

learning mode to various parts of the country or abroad.

(xvi)

[recommend collaborations, joint education and research programmes with academic or research institutions within the

country and abroad.]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

9.

Chairman of Academic Council to exercise powers in emergency.

- If, in the opinion of the Chairman of the Academic Council, any emergency has arisen which requires immediate action, he may in intimation of the same to the Central Government take such action as he deems necessary and shall report the same for approval [and ratification]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

to the Academic Council in its next meeting.

10.

Finance Committee.

(1)

The term of office and filling up of vacancies of [every membership]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Finance Committee shall be as provided for the members of the Executive Council under the Act.

(2)

The Finance Committee shall meet ordinarily four times [in a financial year]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

, preferably before the meeting of the Executive Council.

(3)

Four members of the Finance Committee and the representative of the Central Government (Financial Adviser and Joint Secretary) shall form a quorum [for the meeting]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

.

(4)

The Director shall preside over the meetings of the Finance Committee.

(5)

The provisions in these first Statutes regarding notices of the meeting, inclusion of items in the agenda and confirmation of the minutes applicable to the meetings of the Executive Council shall be followed, so far as practicable may be, in connection with the meetings of the Finance Committee.

(6)

A copy of the minutes of every meeting of the Finance Committee shall be placed before the Executive Council.

(7)

All financial proposals shall be placed before the Finance Committee prior to being placed before the Executive Council for consideration and approval.

11.

Building and Works Committee.

(1)

There shall be a Building and Works Committee for the Institute, consisting of the following members, namely:-

(a)

the Director - Presiding Officer of the Building and Works Committee;

(b)

one member nominated by the Central Government not below the rank of Director or Deputy Secretary;

(c)

one member nominated by the Executive Council;

(d)

Registrar - ex-officio Member Secretary;

(e)

Dean - Member to be nominated by the Director of the Institute on rotation from among the Deans of the Institute; and

(f)

[two experts]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

, not below the rank of Superintending Engineer, each from Civil and Electrical Engineering Wing of Central Government or any autonomous body of repute nominated by Chairperson - [Members]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

.

(2)

The term of office and filling up of vacancies of every member of the Building and Works Committee shall be as provided for the members of the Executive Council under the Act.

(3)

The Building and Works Committee shall meet as often as necessary but ordinarily not less than [four times a financial year]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

.

(4)

Three members and the representative of the Central Government shall form a quorum for a meeting of the Building and Works Committee.

The provisions in these Statutes regarding notice of meeting, inclusion of items in the agenda and confirmation of the minutes applicable to the meeting of the Executive Council shall be followed, as far as practicable may be in connection with meetings of the Building and Works Committee also.

(5)

A copy of the minutes of every meeting of the Building and Works Committee [shall be routed through Finance Committee and placed before the Executive Council for consideration and approval]

[Substituted 'shall be placed before the Executive Council' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

12.

Powers and Functions of Building and Works Committee.

(1)

The Building and Works Committee shall, -

(i)

under the directions of the Executive Council, be responsible for construction of all major works, after receiving necessary administrative approval and expenditure sanction from the Executive Council;

(ii)

have the power to give the necessary administrative approval and expenditure sanction for minor works and works pertaining to maintenance and repair within the approved budgetary provision of the Institute;

(iii)

cause to be prepared estimates of cost of buildings and other capital works minor works, repairs, maintenance and the like;

(iv)

be responsible for making technical scrutiny of the design, estimates and specifications of the material, as may be considered necessary;

(v)

be responsible for enlistment of suitable contractors and acceptance of tenders and shall have the power to give directions for departmental works wherever necessary;

(vi)

have the power to settle rates not covered by tender and settle claims and disputes with contractors.

(2)

If, in the opinion of the Chairman of the Building and Works Committee, any emergency has arisen which requires immediate action to be taken, he shall in intimation of the same to the Central Government take such action and report the same to the Building and Works Committee and the [for ratification and approval]

[Substituted 'Executive Council' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

at their next meeting.

(3)

The Building and Works Committee shall also perform such functions and exercise such powers as may be entrusted to it by the Executive Council from time to time.

13.

Powers of Chairperson.

- [The Chairperson shall execute the contract of service between Institute and the Director on behalf of the Visitor :-]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(i)

he shall in prior consultation with the Central Government, approve the foreign visit of the officers and other staff of the Institute for training or academic pursuits subject to such terms and conditions as may be laid down by the Executive Council from time to time;

(ii)

he shall execute the contract of service between Institute and the director on behalf of the Visitor;

(iii)

he shall execute the contract of service between Institute and the Registrar on behalf of the Executive Council.

14.

Travelling allowances and other facilities to members of authorities of Institute.

(1)

The Chairperson and Vice-Chairperson of Executive Council are entitled for honorarium, transportation facilities, office and subordinate staff services as laid down by Executive Council.

(2)

Members of the Executive Council and other authorities of the Institute and members of the Committees constituted under the Act or these Statutes or appointed by the Executive Council and other authorities shall be entitled to travelling allowance, daily allowance, sitting fee for attending the meetings of the authorities and their Committees, and office facilities and subordinate staff services, as laid down by the Executive Council from time to time.

15.

[Powers of the director.]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(1)

The Director of the Institute shall be appointed by the Visitor on contract basis in accordance with the provisions contained in section 22 of the Act.

(2)

The Director shall be governed by the terms and conditions of the contract of service entered into between the [Chairperson of the Executive Council]

[Substituted 'Institute' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

and the Director, as specified in Schedule-I.

(3)

Subject to the budget provisions made for the specific purpose, the Director shall have the power to incur expenditure in accordance with the procedure as may be laid down by the Executive Council from time to time.

(4)

The Director shall have the power to appropriate funds with respect to different items constituting the recurring budget up to a limit specified by the Executive Council for each item:

Provided that such appropriation shall not involve any increase in the budget and any liability in future years:

Provided further that every such appropriation shall, as soon as possible, be reported to the Executive Council.

(5)

The Director shall have the power to write off irrecoverable losses up to a limit of five thousand rupees and of irrecoverable value of store items lost or rendered unserviceable, due to normal wear and tear or obsolete, [as may be stipulated]

[Substituted 'up to a limit of twenty-five thousand rupees, subject to such stipulations as may be made' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

by the Executive Council from time to time.

(6)

The Director shall have the power to donate obsolete equipment or store items, as identified by a committee constituted for this purpose by the Director, to any educational institution [* * *]

[Omitted 'in the vicinity of the Institute' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

up to such limits as may be decided by the Executive Council from time to time.

(7)

[The Director shall have the power to appoint academic and non-academic staff in the institute from time to time on temporary basis with the approval of the Executive Council who may be paid from contingencies for not more than one year.

(7A)

The Director shall have the power to approve the foreign visits of the faculty, officers and other staff of the Institute for training or academic pursuits in consultation with the Central Government in the Department of Youth Affairs subject to such terms and conditions as may be laid down from time to time.;

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(8)

The Director shall have the power to approve visits of officers and other staff of the Institute for training or conferences and academic pursuits within the country, subject to such terms and conditions as may be laid down by the Executive Council.

(9)

The Director shall have the power of a Head of Department [in the Central Government]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

for purposes of the Delegation of Financial Powers Rules, the Fundamental Rules and the Supplementary Rules (FRSR) [and General Financial Rules (GFR)]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Central Government, in so far as they are applicable or may be made applicable for the conduct of the business of the Institute.

(10)

If for any reason the Registrar is temporarily absent for a period not exceeding one month, the Director may take over or assign to any faculty member or member of staff of the Institute, any of the functions of the Registrar as he deems fit: Provided that if at any time the temporary absence of the Registrar exceeds one month, the Executive Council may, if it thinks fit, authorise the Director to take over or assign the function of the Registrar, for a period exceeding one month.

(11)

The Director may, during his absence from headquarters, specifically authorise in writing, one of the Deans or the senior most Professor present to sanction advances for travelling allowance, contingencies and medical treatment of the staff and sign and counter-sign bills on his behalf.

(12)

The Director may, at his discretion, constitute such committees, as he may consider appropriate for smooth functioning of the Institute.

(13)

The Director may, with the prior approval of the Central Government and the Executive Council delegate any of his powers, authorities or responsibilities vested in him by virtue of the Act and Statutes to one or more members of Academic or administrative staff of the Institute.

(14)

[The Director shall execute the terms and conditions of service between the Institute and the Registrar on behalf of the Executive Council.]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

16.

Registrar.

- [(1) The Registrar of the Institute shall be appointed on contract basis based on the recommendation of a selection Committee constituted as provided under clause (c) of Statute 17.

(2)

The Registrar shall be appointed on tenure basis for a period of three years and shall be governed by the terms and conditions of services as specified in Schedule II.]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(3)

The Registrar shall be responsible,-

(a)

to conduct the official correspondence on behalf of the authorities of the Institute;

(b)

to issue notices to convene meetings of the authorities of the Institute and all committees and sub-committees appointed by any of these authorities;

(c)

to keep the minutes of the meetings of all the authorities of the Institute and of all the committees and sub-committees appointed by any of these authorities;

(d)

to conduct the official correspondence of the Executive Council and the Academic Council;

(e)

to enter into agreements, sign documents and authenticate records on behalf of the Institute;

(f)

to hold in special custody the common seal, funds, records, books and documents and other such property of the Institute, as specified by the Executive Council;

(g)

[to safeguard and maintain the movable and immovable properties of the Institute;

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(h)

to represent the Institute in suits or proceedings by or against the Institute, sign power of attorney and plead or depute his representatives for the purpose;]

(i)

to perform such other duties as may be specified in the Statutes, Ordinances, or Regulations, as may be specified by the Executive Council, Academic Council and the Director from time to time.

17.

[Appointing authority.

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(1)

The following shall be the appointing authority with respect to the appointment made by the Institute, namely :-

(a)

the Executive Council, if the appointment is made for a post where the maximum of the pay scale is the same or higher than that of an Assistant Professor; and

(b)

the Director, in any other case.

(2)

The Selection Committee for appointment to the posts specified in column (1) of the Table below shall consist of the persons specified in the corresponding entry in column (2) of the said Table.

(1)

(2)

Professor or Associate Professor

(1) Director shall be the

Chairperson of the selection Committee.

(2) An academician who is the

nominee of the Visitor.

(3) Three experts in the relevant

subject or field nominated by the Director out of the panel of

names approved by Executive Council.

(4) Dean of the Faculty, wherever applicable.

(5) Head or Chairperson of the Department or School.

(6) An academician representing Scheduled Caste or Scheduled Tribes or Other Backward Class or Minority or Women or Differently-abled Categories, if any, of the candidates representing these categories is the applicant, to be nominated by the Director, if any of the above members of the selection committee do not belong to that category:

Provided that at least four members including two outside subject experts, shall constitute the quorum.

Assistant Professor

(1) Director to be the Chairperson of the selection Committee.

(2) An academician who is the nominee of the Visitor.

(3) Three experts in the concerned subject/ field nominated by the Director out of the panel of names approved by Executive Council.

(4) Dean of the Faculty, wherever applicable.

(5) Head or Chairperson of the Department or School.

(6) An academician representing the Scheduled Caste or the Scheduled Tribe or Other Backward Class or Minority or Women or Differently-abled categories if any, of the candidates representing these categories is the applicant, to be nominated by the Director, if any of the above members of the selection committee do not belong to that category.

Provided that at least four members including two outside subject experts shall constitute the quorum.

Registrar or Finance Officer and Controller of Examinations

(1) Director to be the Chairperson of the selection Committee

(2) An academician who is the nominee of the Visitor.

(3) Three experts in the concerned subject or field out of the list recommended by the Director and approved by Executive Council.

(4) Dean of the Faculty.

(5) Head or Chairperson of the Department

(6) A representative of the Scheduled Caste or Scheduled Tribe, Women and physically handicapped should be in the selection committee whenever a candidate from any of these categories appears for the interview.

Provided that atleast four members including two outside experts, must constitute the quorum.]

17. Appointing authority.- The following shall be appointing authority with respect to the appointments made with

Institute, namely:-

(a) the Director shall be the appointing authority for academic staff and Registrar;

(b) the Registrar shall be the appointing authority for non-academic staff.

18.

Disciplinary authority.

(1)

The following shall be the disciplinary authority with respect to the disciplinary actions taken against the employees of the Institute, namely:-

(a)

the Director shall be the disciplinary authority for the academic staff and Registrar;

(b)

the Registrar shall be the disciplinary authority for the non-academic staff.

(c)

[The Chairman of the Executive Council shall be the Appellate Authority in cases where the Director is the Disciplinary Authority;

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(d)

The Director shall be the Appellate Authority where the Registrar is the Disciplinary Authority.]

(2)

The Disciplinary action shall be taken in accordance with the provisions contained in Central Civil Services (Classification, Control and Appeal) Rules, 1965.

19.

[

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

The academic staff of the Institute shall be the Director, Professor, Associate Professor, Assistant Professor, and such other academic posts as may be decided by the Executive Council.

19A.

The Institute Shall have the following academic units, namely:-

(a)

Division;

(b)

School;

(c)

Centre;

(d)

Department.]

19. Academic staff.- The academic staff of the Institute shall be Director, Professor, Associate Professor, Assistant Professor in all the centres and departments, Research Officer and such other academic posts as may be decided by the Executive Council, with the prior approval of the Central Government from time to time.

20.

Residential accommodation for employees.

(1)

Every employee of the Institute may be allotted an unfurnished house within the campus of the Institute for residential use only, if available, in which he shall be required to reside, subject to such conditions as may be laid down by the Executive Council of the Institute.

(2)

An employee of the Institute, who has been allotted a house for residential use, shall be charged license fee at the rate as fixed by the Executive Council from time to time.

(3)

In addition to the license fee, water, electricity and charges for any other service rendered shall be recovered from an employee on actual basis or at such rates as may be determined by the Executive Council from time to time.

21.

General terms and conditions of service of permanent employees.

- The permanent employees of the Institute shall be governed by the following terms and conditions, namely:-

(i)

subject to the provisions of the Statutes and Recruitment Rules, unless otherwise stipulated, all appointments to posts under the Institute shall be made on probation for a period of one year after which period the appointee, if confirmed, shall continue to hold his office subject to the provisions of the Act and the Statutes, till the end of the month in which [maximum prescribed age as per UGC norms for teaching staff and Government of India norms for non-teaching staff :] [Substituted 'he attains the prescribed maximum age for teaching posts or for technical, ministerial and administrative posts, as the case may be' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

Provided that the appointing authority shall have the power to extend the period of probation of any employee of the Institute for [a maximum of one more year;]

[Substituted 'such periods as it may deem fit' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(ii)

the employees of the Institute shall be entitled to allowances in addition to pay, as admissible to Central Government employees.

(iii)

the employees of the Institute shall be entitled to reimbursement of medical expenses incurred on themselves and their families as per Central Civil Services (Medical Attendance) Rules, 1944.

(iv)

The application of the employees of the Institute shall be forwarded for employment outside the Institute only three times in a year in accordance with the procedure specified by the Academic Council.

(v)

The employees of the Institute will be entitled to Leave Travel Concession (LTC) as admissible to Central Government employees.

22.

Leave.

- The leave for all the employees of the Institute shall be governed by the Central Civil Services (Leave) Rules 1972 [or the University Grants Commission Regulations, 2010, as the case may be]

[Substituted 'and the Institute shall not be a vacation Institute' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

23.

Code of conduct for permanent employees.

- The employees of the Institute shall be governed by the code of conduct in accordance with the provisions of the Central Civil Services (Conduct) Rules, 1964.

24.

Suspension, penalties, disciplinary proceedings.

- The suspension, penalties and disciplinary proceedings of the [employees]

[Substituted 'staff' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Institute shall be in accordance with and regulated by the provisions of the Central Civil Services (Classification, Control and Appeal) Rules, 1965.

25.

Resignation.

- Notwithstanding anything contained in the foregoing provisions, [an employee]

[Substituted 'a member of the staff' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of Institute may resign,-

(i)

if he is a permanent employee, only after giving three months' notice in writing to his appointing authority, or by paying three months' [emoluments]

[Substituted 'salary' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

in lieu thereof;

(ii)

if he is not a permanent employee, only after giving one month's notice in writing to the appointing authority or by paying one month's [emoluments]

[Substituted 'salary' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

in lieu thereof:

Provided that such resignation shall take effect only on the date on which the resignation is accepted by the appointing authority.

26.

Retirement.

- At any time after an employee has completed twenty years of qualifying service, he may, by giving notice, of not less than three months, in writing to the appointing authority, retire from service as per the terms and conditions laid down by the Central Government, from time to time, for its own employees.

(1)

The appointing authority has the right to retire the employee before superannuation as premature retirement in accordance with the provisions of the Central Civil Services (Retirement) Rules, 1964.

(2)

An employee can retire from service on account of any bodily or mental infirmity that permanently incapacitates him from service, subject to the following conditions, namely:-

(i)

the employee shall submit his application to the Registrar through proper channel and produce a medical certificate from medical authority, as may be specified by the ordinances;

(ii)

if the medical authority grants fitness certificate for a lower post, the employee, if willing, may be appointed to such post only if available; and

(iii)

the medical report should precede or coincide with the date of retirement.

27.

Advances.

- The permanent employees of the institute shall be having facility of drawing advances for various purposes as admissible to Central Government employees.

28.

Pension scheme.

- The employees of the Institute shall be regulated in accordance with the provisions of the New Pension Scheme, 2004.

29.

General terms and conditions of services of temporary employees.

(1)

The services of a temporary employee shall be [liable for]

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

termination at any time by notice of one month in writing given either by the employee to the appointing authority, or by the appointing authority to the employee.

(2)

The other terms and conditions of service of such employee shall be such as may be specified by the appointing authority in his letter of appointment.

30.

Deputation.

- Deputation is permissible for appointment (temporary transfer) in public interest outside the Institute, to the Central Government, State Government, Universities or autonomous bodies including Public Sector Undertaking and subject to the terms and conditions specified by the Executive Council.

31.

Scholarships, fellowships, medals and prizes.

- The Executive Council may, on the recommendation of the Academic Council, provide for such scholarships,

fellowships, medals and prizes, as it may consider necessary.

32.

Fees.

- The Institute shall charge the following fees, namely:-

(a)

tuition and the hostel fees, as determined by the Executive Council;

(b)

caution deposit, which shall be refundable to students, scholars and fellows at the time of finally leaving the Institute, after deduction of relevant dues, if any and where no claim for a refund is received within two years of finally leaving the Institute, the caution money shall be credited into the Student Welfare Fund;

(c)

fee concession and scholarships, as may be determined by the [Institute]

[Substituted 'Central Government' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

from time to time shall be applicable to the Institute.

33.

Students hostels and halls.

(1)

The Institute shall be a residential institution and all students and research scholars shall reside in the hostels and halls of residence built by the Institute for the purpose:

Provided that in exceptional cases, for reasons to be recorded in writing, the Director may permit a student or scholar to reside with his parent or guardian, but where any such permission is accorded to a student or scholar, such student or scholar, as the case may be, shall be liable for the payment of such fee rent as he would have been liable for the payment of fee rent had he resided in the hostel.

(2)

Every resident in the hostels and halls shall conform to rules laid down by the Institute for the purpose.

(3)

For each hostel or hall of residence there shall be a Warden and such number of Assistant Wardens and other staff, as may be determined by the Executive Council from time to time.

(4)

The members of the academic staff shall be appointed by the Director as Warden and Assistant Warden.

(5)

Wardens and Assistant Wardens shall be entitled to rent free unfurnished quarters corresponding to the type of quarters to which they are normally entitled.

(6)

The Executive Council shall lay down rules for the management of the hostels and halls of residence.

34.

Conferment of honorary degrees.

- The Institute may confer honorary degrees to exceptional and outstanding persons for their illustrious contribution in their respective fields:

Provided that all proposals for the conferment of honorary degrees shall be made by the Academic Council and shall be approved by the Executive Council.

35.

[Statute Governing the Boards of Studies.

[Inserted by Notification No. G.S.R. 1158 (E), dated 20.12.2016 (w.e.f. 18.6.2013).]

- 1. Each Department shall have a Board of Studies comprising the following members:

a. Head of the Department, who shall be the Chairman & Convenor

b. Dean of the School concerned or his/ her nominee

c. All the Professors of the Department/ Centre (ex-officio members)

d. One Associate Professor of the Department by rotation in order of seniority

e. One Assistant Professor of the Department by rotation in order of seniority

f. Two teachers, from amongst the faculty members of the Institute belonging to the allied and cognate disciplines,

nominated by the Director.

g. Two subject experts, not in the service of the Institute, to be nominated by the Director.

2. The term of office of the members, other than the ex-officio members i.e. the Head of the Department and the Professors of the department, shall be three years.

3. Chairman of the Board. - The Chairman of the Board of Studies shall be nominated by the Director

4. A Teacher of the Institute Department/Centre shall cease to be a member, if he ceases to be a teacher of the concerned Department/Centre.

5. Subject to the overall control and supervision of the Academic Council, the functions of the Board of Studies shall be:

a) To approve subject for research for various degree courses and the other requirements of research programmes.

b) To recommend to the Academic Council:

i. courses of studies and appointment of examiners, but excluding research degree

ii. appointment of supervisors for research.

iii. measures for improvement of the standard of teaching and research.

c) To ensure that the curricula and syllabi of various courses offered by the teachers in the Departments are periodically reviewed and continuously revised and updated.

d) To prescribe and recommend to the Faculty and the Academic Council the text books for the several courses and programmes of studies.

e) The Board of Studies advice the Academic Council on such matters as may be referred to it

f) To perform such other functions as may be assigned to it by the Academic Council, or the Director.

6. The Head of the Department/Centre shall convene the meetings of Board of Studies.

7. In case Head of the Department/Centre is not present at any meeting, the senior-most member present shall act as the Chairman for the meeting.

8. Board of Studies shall ordinarily meet at least twice a year and on such occasions as may be directed by the Director.

9. Notice for a meeting of the Board of Studies, other than a special meeting, shall ordinarily be issued at least 10 days before the day fixed for the meeting. The procedure for conduct of the meetings of the Board shall be as laid down by the Academic Council.

10. The quorum for the meetings of the Board of Studies shall be 50% of the members of the Board of Studies which shall include at least one outside expert.

11. Special meetings may be called by the Chairman at his/her own initiative or on a written request by at least 50% of the members of the Board of Studies.

12. In case of special meetings called at the request of the members, no item other than those notified in the Agenda shall be discussed and that the presence of all members, at whose request the Special meeting was called, will be essential.

13. If in the opinion of the Director, it is not necessary or expedient to convene a meeting of the Board of Studies to consider any item and if he considers that a matter could be disposed off by circulation among the members of Board of Studies he may issue necessary instructions to that effect.

14. Joint Meetings. - Whenever it is deemed necessary it shall be competent for the Director to convene a Joint Meeting of two or more Boards of Studies and at all such meetings the Director or his/her nominee shall preside.

36.

Board of Research Studies.

- 1. Membership of the Board. -

1.1

Each School of Studies shall have a Board of Research Studies consisting of the following members:

(a)

Dean of the School (Convenor and Chairman)

(b)

Heads of Centres and Departments in the School:

(c)

One Professor, one Associate Professor and one Assistant Professor from amongst the members of the Board of the School by rotation in order of seniority.

1.2

The Professor concerned with any particular item on the agenda, who is not a member of the Board, shall be invited to attend the meeting and if there are two or more such Professors in a Department/Centre concerned with any particular item of agenda who are not members, they shall all be invited to attend the meeting; Provided that no person so invited shall have the right to vote

2. Power of the Board as Admission Board. - The Board of Research Studies shall consider applications for admission to the course of research leading to the Ph.D degree and select candidates for admission thereto.

3. Duties of the Board. - The duties of the Board of Research Studies shall be :

(a)

to appoint Supervisors or Advisors for students enrolled for the Ph.D. Course on the recommendation of the Department/Centre concerned;

(b)

to recommend examiners for the research work submitted by candidates for research degrees;

(c)

to consider reports of the examiners appointed for the research work submitted by candidates for research degrees and make suitable recommendations;

(d)

to consider applications from the teachers of the School for study leave;

(e)

to advise the concerned Board of Studies regarding any schemes or projects of research or of advanced studies which the Board may refer to it for its consideration;

(f)

to perform such duties as may be assigned to it by the Academic Council or the Board of Studies.

4. Approval of the Proceedings of the Board. -

4.1

The Proceedings of the Board of Research Studies shall be placed before the Director for consideration and approval.

4.2

The Board may cause such items of its proceedings to be placed before the Academic Council as the Board may deem expedient and necessary with its remarks.

5. Term of Office. - The term of the members under Clause 1.1(c) shall be two years.

6. Quorum. - Five members of the Board shall form the quorum.

7. Procedure for conduct of the Meetings. - The procedure for conduct of the meetings of the Board shall be as laid down by the Academic Council.

7.1

Minutes. - Every resolution of the Board of Studies passed shall be recorded at the meeting and read out by the Chairman at the meeting itself. The Chairman of the meeting shall normally send to the Registrar a copy of the minutes as approved at the meeting within ten days after the date of the meeting.

7.2

The Director, may in urgent cases, obtain the opinion of the Board of Studies by circulation of any proposal among the members of the Board. Such opinion, together with the action taken thereon shall be re-communicated to all the members]

I

Director of the Institute

[See sub-Statute (2) of first Statute 15]

Whereas in terms of section 22 of the Rajiv Gandhi National Institute of Youth Development Act, 2012 (hereinafter called the Act) and sub-Statute (2) of first Statute 15 of these Statutes (hereinafter called Statutes), the Visitor has been pleased to appoint the appointee as the Director of the Institute on contract for three years and the appointee has accepted such appointment upon the terms and conditions hereinafter appearing.

Now These Presents Witnesseth and the parties hereto respectively agree as follows:-

(1)

This agreement of service shall be deemed to have been entered into subject at all times to the provisions of the Act, Statutes and Ordinances covering the Institutes as in force from time to time as applicable to permanent confirmed

employees.

(2)

The appointee shall be on service under the agreement for a period of three years with effect from date of joining the post:

Provided that if the appointee on conclusion of the period of his appointment is below sixty five years of age, his service shall continue till 30th June of the year in which the appointee concludes the said period of service or till he attains the age of sixty-five years whichever is earlier.

(3)

The appointee shall be the Principal academic and Executive Officer of the Institute with powers and duties provided in the said Act, Statutes, and Ordinances.

(4)

[The appointee shall devote his whole time to the service of the Institute and shall be subject to the Conduct Rules and other provisions of the Act, Statutes and Ordinances and any official information in his knowledge as obtained by the appointee in connection with the work upon which he is engaged or he is privy to, shall be treated as secret and confidential if such information cannot be disclosed to others under the Right to Information Act, 2005.]

[Substituted 'Central Government' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(5)

During the period of his service, except in respect of any period of suspension and also of any period of leave without pay, the appointee shall be certified subject to the Indian Income-tax [Act, 1961 (

43 of 1961

)]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

to an initial pay of Rs. 75,000/- with special allowances of Rs. 5,000/- per month that if any time the appointee proceeds on deputation out of India, his pay and allowances during the period his deputation will be such as may be decided by the Executive Council and in addition, the appointee shall draw [pay and allowances]

[Substituted 'allowances like dearness allowance, city compensatory allowance, etc.,' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

as may be admissible from time to time as per rules of the Institute.

(6)

During his service under these presents the appointee shall subscribe to the Contributory Provident Fund-cum-Gratuity of the Institute according to the provisions made in the Statutes and subject to such modifications in these provisions as may be made from time to time and shall also be entitled to the contribution of the Institute as admissible to the permanent confirmed employees as per the Statutes. In the event of the appointee being employer of any other Institute or University or and enjoying the benefits either under Contributory Provident Fund-cum-Gratuity Scheme or General Provident Fund-cum-Pension-cum-Gratuity Scheme, he shall join the corresponding Scheme of the Institute with transfer of this accumulation as admissible under the Statutes. In case the appointee is the employee of the institute he shall continue to be governed by Contributory Provident Fund-cum-Gratuity Scheme as immediately prior to this contract of appointment and shall be entitled to benefits of the scheme for the period of his service under this contract like other permanent employees of the Institutes as per the Statutes.

(7)

Notwithstanding anything hereinbefore contained, the appointee shall, unless otherwise decided by the Institute, be entitled to receive the whole or in part as may be determined by the Institute the benefits of any improvements in the revision of scale of pay and in retirement benefits that may be [effected]

[Substituted 'affected' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

by the Institute subject to the date of these presents in the terms and conditions of the service of members of the branch of Institute, service to which he may for the time being belong, the decision of the Institute in respect of such improvement in the terms and conditions of their service of appointee shall operate so as to modify to that extent the provisions of these presents.

(8)

The appointee shall be entitled to leave as admissible to permanent non-vacation employees of the Institute under the Statutes.

(9)

The appointee shall be entitled to furnished, free of license fee, an office cum residential accommodation in the campus of the Institute as may be sanctioned by the Executive Council of the Institute.

(10)

[The appointee shall be entitled to reimbursement of medical expenses incurred on him and his family as per the Central Civil Services (Medical Attendance) Rules, 1944.

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(11)

The appointee shall be entitled for travelling expenses for joining the Institute and also for travel in the interest of Institute work, at par with an officer of the Central Government as Fundamental Rules and Supplementary Rules (FRSR) Part II. Also, the appointee shall be entitled to leave travel concession for visiting his hometown as per Fundamental Rules and Supplementary Rules (FRSR) Part II.]

If the appointee is required to travel in the interest of Institute work, he shall be entitled to travelling allowance and the scale provided for in the Central Civil Services (Joining Time) Rules, 1979 of the Institute in force from time to time. Similarly the appointee shall be entitled to leave travel concession for visiting his hometown as per the Rules of the Institute.

(12)

Any amount received by the appointee from books and articles published by him at his cost shall be left to him as an encouragement for continuing his work in that line. He would also be allowed to do consultancy and retain benefits of the same as per rules laid down by the Executive Council from time to time.

(13)

[The service of appointee may, during the period of agreement, be terminated by the appointing authority for just and sufficient causes, after following the due process of enquiry and providing sufficient opportunity after serving the notice of termination.

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(13 A) The appointee may resign from his service by giving to the Institute three calendar months' notice in writing or by paying a sum equivalent to three months emoluments in lieu thereof.]

(14)

The appointee will be allowed the status of Professor of the Department of his speciality and take part in teaching and research in the said Department subject to his convenience.

(15)

In respect of any matter for which no provision has been made in this agreement the appointee will be governed by the said Rajiv Gandhi National Institute of Youth Development Act, 2012 or any modification thereof for the time being in force and the Statutes made there under for time being in force.

In witness whereof on the day and the year first above written, the [Chairperson]

[Substituted 'Chairman' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Executive Council of the Institute has hereinto set his hand and the appointee has herein to set his hand.

Signed and delivered for the

Rajiv Gandhi National Institute of Youth
Development, by the Chairperson,
Executive Council of the Institute.

In the presence of Signature of witnesses with addresses

Signed and delivered by the said appointee in the presence of Signature of..... witnesses with addresses Director, Rajiv Gandhi National Institute of Youth Development.

II

Registrar of the Institute

[See sub-Statute (2) of first Statute 16]

Whereas in terms of section 22 of the Rajiv Gandhi National Institute of Youth Development Act, 2012 (hereinafter called the Act) and sub-Statute (2) of first Statute 16 of these Statutes (hereinafter called Statutes), the Visitor [Chairperson, Executive Council]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

has been pleased to appoint the appointee as the Registrar of the Institute on contract for three years and the appointee has accepted such appointment upon the terms and conditions hereinafter appearing.

Now these presents witnesseth and the parties hereto respectively agree as follows -

(1)

This agreement of service shall be deemed to have been entered into subject at all times to the provisions of the Act, Statutes and Ordinances covering the Institutes as in force from time to time as applicable to permanent [* * *]

[Omitted 'confirmed' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

employees.

(2)

The appointee shall be on service under the agreement for a period of three years with effect from date of joining the post:

Provided that if the appointee on conclusion of the period of his appointment is below sixty years of age, his service shall continue till 30th June of the year in which the appointee concludes the said period of service or till he attains the age of sixty years whichever is earlier.

(3)

The appointee [shall]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

have powers and duties provided in the said Act, Statutes, and Ordinances.

(4)

The appointee shall devote his whole time to the service of the Institute and will be subject to the conduct Rules and other provisions of the said [Statutes and Ordinances]

[Substituted 'Act of the Statues' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

. Any information obtained by appointee during or in connection with his appointment and the work upon which he is engaged shall be treated as secret and confidential and appointee shall be deemed in all respects to be subject to the Indian Official Secrets Act, 1923.

(5)

During the period of his service, except in respect of any period of suspension and also of any period of leave without pay, the appointee shall be certified subject to the Indian Income-tax [Act, 1961 (

43 of 1961

)]

[Inserted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

shall be fixed in pay structure of pay band-4, Rs.37,400-67,000 plus grade pay of Rs.10,000 and if at any time the appointee proceeds on deputation out of India, his pay and allowances during the period his deputation will be such as may be decided by the Executive Council and in addition, the appointee shall draw [pay and allowances]

[Substituted 'allowances like dearness allowance, city compensatory allowance, etc.' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

, as may be admissible from time to time as per rules of the Institute.

(6)

During his service under these presents the appointee shall subscribe to the Contributory Provident Fund-cum-Gratuity of the Institute according to the provisions made in the Statutes and subject to such modifications in these provisions as may be made from time to time and shall also be entitled to the contribution of the Institute as admissible to the permanent confirmed employees as per the Statutes. In the event of the appointee being employer of any other Institute or University or and enjoying the benefits either under Contributory Provident Fund-cum-Gratuity Scheme or General Provident Fund-cum-Pension-cum-Gratuity Scheme, he shall join the corresponding Scheme of the Institute with transfer of this accumulation as admissible under the Statutes. In case the appointee is the employee of the institute he shall continue to be governed by Contributory Provident Fund-cum-Gratuity Scheme as immediately prior to this contract of appointment and shall be entitled to benefits of the scheme for the period of his service under this contract like other permanent employees of the Institutes as per the Statutes.

(7)

Notwithstanding anything hereinbefore contained, the appointee shall, unless otherwise decided by the Institute, be entitled to receive the whole or in part as may be determined by the Institute the benefits of any improvements in the

revision of scale of pay and in retirement benefits that may be [effected]

[Substituted 'affected' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

by the Institute subject to the date of these presents in the terms and conditions of the service of members of the branch of Institute, service to which he may for the time being belong, the decision of the Institute in respect of such improvement in the terms and conditions of their service of appointee shall operate so as to modify to that extent the provisions of these presents.

(8)

The appointee shall be entitled to leave as admissible to permanent non-vacation employees of the Institute under the Statutes.

(9)

The appointee shall be entitled to furnished, free of license fee, an office cum residential accommodation in the campus of the Institute as may be sanctioned by the Executive Council of the Institute.

(10)

[The appointee shall be entitled to reimbursement of medical expenses incurred on him and his family as per the Central Civil Services (Medical Attendance) Rules, 1944.

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(11)

The appointee shall be entitled for travelling expenses for joining the Institute and also for travel in the interest of Institute work, at par with an officer of the Central Government as Fundamental Rules and Supplementary Rules (FRSR) Part II. Also, the appointee shall be entitled to leave travel concession for visiting his hometown as per Fundamental Rules and Supplementary Rules (FRSR) Part II.]

If the appointee is required to travel in the interest of Institute work, he shall be entitled to travelling allowance and the scale provided for in the Central Civil Services (Joining Time) Rules, 1979 of the Institute in force from time to time. Similarly the appointee shall be entitled to leave travel concession for visiting his hometown as per the Rules of the Institute.

(12)

[The service of appointee may, during the period of agreement, be terminated by the appointing authority for just and sufficient causes, after following the due process of enquiry and then providing sufficient opportunity after serving the notice of termination.

[Substituted by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

(12A)

The appointee may resign from his service by giving to the Institute three calendar months' notice in writing or by paying a sum equivalent to three months emoluments in lieu thereof.]

(13)

In respect of any matter for which no provision has been made in this agreement the appointee will be governed by the said Rajiv Gandhi National Institute of Youth Development Act, 2012 or any modification thereof for the time being in force and the Statutes made there under for time being in force.

In witness whereof on the day and the year first above written, the [Director]

[Substituted 'Chairman of the Executive Council' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

of the Institute has hereinto set his hand and the appointee has herein to set his hand.

Signed and delivered for the

Rajiv Gandhi National Institute of Youth

Development, by the Chairperson,

Executive Council of the Institute

In the presence of Signature of Witnesses with addresses

Signed and delivered by the said appointee in the presence of Signature of witnesses with addresses [Registrar]

[Substituted 'Director' by Notification No. G.S.R. 507(E), dated 10.5.2016 (w.e.f. 18.6.2013).]

, Rajiv Gandhi National Institute of Youth Development.

Related AI tags, queries and research notes

Translation